

Case	Title / Nature of Case
02:00 PM	
21-CIV-04741	MICHAEL D. LIBERTY VS. BANK OF THE WEST, ET AL.
LINE 1	
MICHAEL D. LIBERTY	PRO PER
RONALD O'CONNELL	EDWARD S. ZUSMAN

DEFENDANTS RONALD O'CONNELL AND PENCOMP, INC.'S MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT CCP 877.6

TENTATIVE RULING:

Defendants Pencomp, Inc. and Ronald O'Connell's unopposed Motion for Determination of Good Faith Settlement is GRANTED pursuant to Code Civ. Proc. section 877.6.

Code of Civ. Proc. section 877.6 authorizes trial courts to determine whether a settlement between a claimant and a joint tortfeasor was made in good faith. (Code of Civ. Proc. section 877.6.) A determination of good faith bars other joint tortfeasors from claims for equitable comparative contribution or partial or comparative indemnity based on comparative negligence or comparative fault. (*Id.*) The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settling defendant's liability to be (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251; *PacificCare of California v. Bright Medical Associates, Inc.* (2011) 198 Cal.App.4th 1451.) The California Supreme Court in *Tech-Bilt* established that "a defendant's settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant's liability to be" (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488 ("*Tech-Bilt*").)

The non-exhaustive factors for making a determination of good faith settlement are provided by the *Tech-Bilt* case, and include a rough approximation of the plaintiff's total recovery and the settlor's proportionate liability; the amount paid in settlement; the allocation of settlement proceeds among plaintiffs; the recognition that a settlor should pay less in settlement than he would if he were found liable after trial; the financial conditions and insurance limits of settling defendants; and the existence of fraud, collusion, or tortious conduct aimed to injure the interests of non-settling defendants. (*Tech-Bilt*, 38 Cal.3d at 499; *see also Long Beach Memorial Medical Center v. Super. Ct.*, (2009) 172 Cal. App. 4th 865, 873.)

Where the good faith of a settlement agreement is challenged, the party asserting the lack of good faith shall have the burden of proof on that issue. (Cal. Code of Civil Procedure, section 877.6(d).) "[W]hen the good faith nature of a settlement is disputed, it is incumbent upon the trial court to consider and weigh the *Tech-Bilt* factors" but "when no one objects, the barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case, is sufficient." (*City of Grand Terrace v. Superior Court* (1987) 192 Cal. App. 3d 1251, 1261.)

Here, the moving Defendants' counsel establishes a background of the case as it pertains to them. (McMahon Decl., ¶¶6-8.) "Pursuant to the Settlement, Pencomp Defendants are to pay \$22,500.00 to

fully and finally resolve all of Plaintiff's claims against them, conditioned upon a finding that their settlement is in good faith pursuant to Code of Civil Procedure section 877.6. The settlement amount of \$22,500.00 fairly represents the Pencomp Defendants' risks and Plaintiff's likelihood of prevailing on the merits of his claims." (*Id.*, at ¶9.) Counsel for all parties except Defendant Sarah Hillhouse stipulated to the good faith nature of the settlement. (*Id.*, at ¶¶2-3.) Defendant Sarah Hillhouse did not respond to Defendants' requests to stipulate and has not filed any opposition to this Motion. (*Id.*, at ¶5.) Defendants' showing satisfies the requirements of Code of Civ. Proc. section 877.6 and the unopposed Motion is accordingly GRANTED.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

23-CIV-04969 GUILLERMO CORONEL VS. LARELL CARL FRANKLIN

LINE 2

GUILLERMO CORONEL
LARELL CARL FRANKLIN

CESAR R. FUMAR

PLAINTIFF GUILLERMO CORONEL'S MOTION TO VACATE ENTRY OF DEFAULT

TENTATIVE RULING:

The unopposed motion to vacate default judgment is granted pursuant to Code of Civil Procedure Section 187. The default entered on June 20, 2024 was premature because no statement of damages was served prior to entry as required by Code of Civil Procedure Section 425.11. Accordingly the Court hereby ORDERS the default VACATED.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.
